

REVENUE MEMORANDUM CIRCULAR NO. 42-2026 issued on May 7, 2026 clarifies the submission of the Certificate of Entitlement to Tax Incentives (CETI) as attachment to the Annual Income Tax Return (AITR) of Registered Business Enterprise (RBE) taxpayers.

Revenue Memorandum Circular (RMC) No. 20-2026 did not amend nor repeal existing requirements relating to the submission of the CETI by RBE taxpayers. The list of attachments to the AITR indicated in RMC No. 20-2026 is similar to those prescribed under the following prior issuances: (1) RMC No. 34-2025; (2) RMC No. 51-2024; and (3) RMC No. 44-2023. Said issuances were issued in reference to and consistent with the provisions under RMC No. 28-2022, which governs the submission of CETI in support of the availment of Income Tax incentives.

RBEs duly registered with Investment Promotion Agencies are mandated to attach the CETI to their AITR filed with the Bureau. The requirement to submit the CETI remains enforceable and is not dependent on any express enumeration, and continues to apply notwithstanding the non-inclusion of the CETI in subsequent circulars providing general lists of AITR attachments.

In accordance with the existing rules and regulations, the CETI shall continue to form part of the mandatory attachments to the AITR for RBE taxpayers availing of Income Tax incentives. The non-inclusion of the CETI in the illustrative list of attachments under RMC No. 20-2026 shall not be construed as a waiver or removal of the said requirement